



CABRERA CONSTRUCTION

Lic. #1135927 | B-General Building
2752 Capistrano St, Antioch, CA 94509
(415) 359-5394 | admin@cabrera.construction

HOME IMPROVEMENT CONTRACT

(Business and Professions Code §7159) (As of January 1, 2021)

This **AGREEMENT** is made _____, between the Owner and
as of the _____ day of _____, 20____ Contractor below.

OWNER

(Owner's Name)

(Owner's Street Address)

(City, State and Zip)

CONTRACTOR

Cabrera Construction
(Contractor's Name)
2752 Capistrano St
(Contractor's Address)
Antioch, CA 94509
(City, State and Zip)
1135927
(Contractor's License Number)
B - General Building

(License Classification Applicable to Project)

The **"NOTICE OF CANCELLATION"** may be sent to the Contractor at the address or email address shown above. **You are entitled to a completely filled-in copy of this agreement, signed by both you and the Contractor, before any work may be started.**

(Name & Registration of Home Improvement Salesperson, if applicable)

The Project is:

(Name and Address)

Description of the Project and Significant Materials to be Used and Equipment to be Installed:

List of Documents Attached and Incorporated into the Contract:

1. Notice of Cancellation Form
2. Home Improvement Change Order Form
3. California Residential Contracts – Required Attachments and Checklists
4. _____
5. _____

Contract Price: \$ _____
Finance Charge (if applicable): \$ _____
Down Payment: \$ _____

THE DOWN PAYMENT MAY NOT EXCEED \$1,000 OR 10% OF THE CONTRACT PRICE, WHICHEVER IS LESS.

Schedule of Progress Payments:

Work to be completed, materials and equipment supplied	Amount Due	When Due
_____	_____	_____
_____	_____	_____
_____	_____	_____

see attachment for remaining progress payments

The schedule of progress payments must specifically describe each phase of work, including the type and amount of work or services scheduled to be supplied in each phase, along with the amount of each proposed progress payment. **IT IS AGAINST THE LAW FOR A CONTRACTOR TO COLLECT PAYMENT FOR WORK NOT YET COMPLETED, OR FOR MATERIALS NOT YET DELIVERED. HOWEVER, A CONTRACTOR MAY REQUIRE A DOWN PAYMENT.**

Upon satisfactory payment made for any portion of the work performed, the Contractor, prior to any further payment being made, shall furnish to the Owner a full and unconditional release from any potential lien claimant claim or mechanics lien authorized pursuant to Sections 8400 and 8404 of the Civil Code for that portion of the work for which payment has been made.

Approximate Start Date

Approximate Completion Date

Substantial commencement of the work shall mean when the first installation of work or delivery of materials occurs at the Project.

WORKERS' COMPENSATION INSURANCE (check one):

- This Contractor has no employees and is exempt from workers' compensation requirements.
- ✓ This Contractor carries workers' compensation insurance for all employees.

USE OF SUBCONTRACTORS (required disclosure – check one):

Will one or more subcontractors be used on this project?

✓ Yes

No

If "Yes" is checked, the following disclosure applies and is part of this contract: One or more subcontractors will be used on this project, and the contractor is aware that a list of subcontractors is required to be provided, upon request, along with the names, contact information, license number, and classification of those subcontractors.

COMMERCIAL GENERAL LIABILITY INSURANCE (CGL) (check one):

This Contractor does not carry commercial general liability insurance.

✓ This Contractor carries commercial general liability insurance.

Insurer: Evanston Insurance Company

Phone: 916-482-9600

This Contractor is self-insured.

This Contractor is a limited liability company that carries liability insurance or maintains other security as required by law.

PAYMENT TERMS

Credit Card Processing Fee: The Contract Price stated in this Agreement is the price for payment by cash, check, or electronic bank transfer. If the Owner elects to pay the down payment or any progress payment by credit card, the Owner bears the cost of card acceptance and the Contractor will add the fee charged by its payment processor to that payment. The fee will not exceed the Contractor's actual cost of accepting the card, is itemized separately on the invoice and receipt, and does not apply to debit card payments. Before processing any payment, the Contractor will state the amount with and without the fee, and the Owner may instead elect to pay by cash, check, or electronic bank transfer.

TERMS AND CONDITIONS

Responsibility for Completion: The Contractor is the prime (direct) contractor and is responsible for completion of the project in accordance with this home improvement contract, the plans, and the specifications. The use of subcontractors does not relieve the Contractor of this responsibility, nor does it excuse any subcontractor or home improvement salesperson from administrative discipline for violations of the home improvement contract laws.

Plans and Specifications: The project shall be constructed according to the Plans, Drawings, and Specifications. Contractor shall be entitled to rely on the accuracy of the Plans, Drawings, and Specifications provided by Owner. Contractor shall be entitled to a change in the Contract Sum and Contract Time if the Plans, Drawings and Specifications contain errors.

Property Insurance: Owner shall purchase and maintain, until final payment is due, property insurance in the amount of the initial Contract Sum plus subsequent modifications for the entire Work at the site written on an All-Risk policy form and shall name Contractor as an additional insured. If the Project, or any portion thereof, is destroyed or damaged by accident, disaster or calamity resulting from any cause, including the negligence of Contractor or its subcontractors, Contractor shall nevertheless be paid for all Work completed, Work in progress, and the cost of the Work as of the date of the calamity, including an appropriate percentage (based on percentage of completion) of the Contractor's overhead and profits earned to date of the calamity, to the extent covered by said all-risk policy, so long as the loss is a covered loss under the Owner's all-risk policy. At the option of the Owner, this Agreement may be terminated under such circumstances, or the Project may be rebuilt under the terms of this Agreement, with appropriate adjustments for price, scope of Work and schedule.

Waiver of Subrogation: The Owner and Contractor waive all rights against each other and any of their subcontractors, agents and employees for damages caused by fire or other causes of loss to the extent covered by property insurance applicable to the work, except such rights as they had to proceeds of such insurance held by the Owner as fiduciary. Policy shall provide such waivers of subrogation by endorsement or otherwise.

Right to Stop Work: Contractor shall have the right to cease work on the Project if any amount due Contractor has not been paid when due.

Permits: Contractor shall obtain and pay for all required building permits. Owner shall be responsible for all taxes, assessments and charges required by public agencies.

Attorneys' Fees: In any dispute relating to the interpretation or enforcement of this Agreement, the prevailing party shall be entitled to its costs and attorneys' fees.

Bankruptcy: If either party files for Bankruptcy or makes an assignment for creditors, the other party has the right to cancel this Agreement.

Assignment: Neither party shall assign its rights or delegate its duties under this Agreement without prior written consent of the other.

Delay: Contractor shall be excused for any delay and may be entitled to an increase in the Contract Time due to any of the following events provided that such event is beyond the reasonable control of Contractor: (i) acts of God including, but not limited to, wind, rain, flood, storm, landslide, subsidence, and earthquake; (ii) acts of neglect of Owner; (iii) failure of Owner to promptly process submittals, payment applications, or change orders; (iv) delays caused by work which is not the responsibility of Contractor; (v) acts of neglect of separate contractors employed by Owner; (vi) delays caused by public utilities or government or public bodies or their agents; (vii) materials embargoes; (viii) labor troubles, labor slow down, strikes, union activity causing reduction in productivity, none of which is caused or aggravated by Contractor; (ix) fire; (x) delays in transportation; (xi) changes ordered in the Work; (xii) wrongful failure of Owner to make payments to Contractor required under the Contract Documents; or (xiii) other causes beyond the reasonable control of Contractor, its employees, agents and subcontractors.

Bond: The Owner, or tenant, shall have the right to require Contractor to procure a performance and payment bond.

OWNER SIGN HERE

CONTRACTOR OR AGENT SIGN HERE

If More Than One Owner, Second Owner Sign Here

Note About Extra Work and Change Orders: Extra Work and Change Orders become part of the contract once the order is prepared in writing and signed by the parties prior to the commencement of any work covered by the new change order. The order must describe the scope of the extra work or change, the cost to be added or subtracted from the contract, and the effect the order will have on the schedule of progress payments. The Owner may not require the Contractor to perform extra work without written authorization prior to the commencement of work covered by the new change order. Extra work or a change order is not enforceable against the Owner/a buyer unless the change order also identifies all of the following in writing prior to the commencement of work covered by the new change order: (i) the scope of work encompassed by the order; (ii) the amount to be added or subtracted from the contract; (iii) the effect the order will make in the progress payments or the completion date. The Contractor's failure to comply with the requirements of this paragraph does not preclude the recovery of compensation for work performed based upon legal or equitable remedies designed to prevent unjust enrichment.

MECHANICS LIEN WARNING

Anyone who helps improve your property, but who is not paid, may record what is called a mechanics lien on your property. A mechanics lien is a claim, like a mortgage or home equity loan, made against your property and recorded with the county recorder.

Even if you pay your contractor in full, unpaid subcontractors, suppliers, and laborers who helped to improve your property may record mechanics liens and sue you in court to foreclose the lien. If a court finds the lien is valid, you could be forced to pay twice or have a court officer sell your home to pay the lien. Liens can also affect your credit.

To preserve their right to record a lien, each subcontractor and material supplier must provide you with a document called a 'Preliminary Notice.' This notice is not a lien. The purpose of the notice is to let you know that the person who sends you the notice has the right to record a lien on your property if he or she is not paid.

BE CAREFUL. The Preliminary Notice can be sent up to 20 days after the subcontractor starts work or the supplier provides material. This can be a big problem if you pay your contractor before you have received the Preliminary Notices.

You will not get Preliminary Notices from your prime contractor or from laborers who work on your project. The law assumes that you already know they are improving your property.

PROTECT YOURSELF FROM LIENS. You can protect yourself from liens by getting a list from your contractor of all the subcontractors and material suppliers that work on your project. Find out from your contractor when these subcontractors started work and when these suppliers delivered goods or materials. Then wait 20 days, paying attention to the Preliminary Notices you receive.

PAY WITH JOINT CHECKS. One way to protect yourself is to pay with a joint check. When your contractor tells you it is time to pay for the work of a subcontractor or supplier who has provided you with a Preliminary Notice, write a joint check payable to both the contractor and the subcontractor or material supplier.

For other ways to prevent liens, visit CSLB's Internet Web site at www.cslb.ca.gov or call CSLB at 800-321-CSLB (2752).

REMEMBER, IF YOU DO NOTHING, YOU RISK HAVING A LIEN PLACED ON YOUR HOME. This can mean that you may have to pay twice, or face the forced sale of your home to pay what you owe.

Information about the Contractors' State License Board (CSLB): CSLB is the state consumer protection agency that licenses and regulates construction contractors. Contact CSLB for information about the licensed contractor you are considering, including information about disclosable complaints, disciplinary actions and civil judgments that are reported to CSLB.

Use only licensed contractors. If you file a complaint against a licensed contractor within the legal deadline (usually four years), CSLB has authority to investigate the complaint. If you use an unlicensed contractor, CSLB may not be able to help you resolve your complaint. Your only remedy may be in civil court, and you may be liable for damages arising out of any injuries to the unlicensed contractor or the unlicensed contractor's employees.

For more information:

Visit CSLB's Web site at www.cslb.ca.gov

Call CSLB at 800-321-CSLB (2752)

Write CSLB at P.O. Box 26000, Sacramento, CA 95826

ARBITRATION OF DISPUTES: Any dispute arising out of or relating to the negotiation, award, construction, performance or non-performance, of any aspect of this agreement, shall be settled by binding arbitration in accordance with the Construction Industry Rules of the American Arbitration Association and judgment upon the award rendered by any such arbitrator may be entered in any court having jurisdiction thereof.

NOTICE: BY INITIALING IN THE SPACE BELOW YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE "ARBITRATION OF DISPUTES" PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY CALIFORNIA LAW AND YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED IN A COURT OR JURY TRIAL. BY INITIALING IN THE SPACE BELOW YOU ARE GIVING UP YOUR JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS THOSE RIGHTS ARE SPECIFICALLY INCLUDED IN THE "ARBITRATION OF DISPUTES" PROVISION. IF YOU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF THE BUSINESS AND PROFESSIONS CODE OR OTHER APPLICABLE LAWS. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY.

WE HAVE READ AND UNDERSTAND THE FOREGOING AND AGREE TO SUBMIT DISPUTES ARISING OUT OF THE MATTERS INCLUDED IN THE "ARBITRATION OF DISPUTES" PROVISION TO NEUTRAL ARBITRATION.

(Owner's Initials)

(Contractor's Initials)

Three Five¹ Seven² Day Right to Cancel

You, the Owner, have the right to cancel this contract within three, five or seven business days. You may cancel by e-mailing, mailing, faxing, or delivering a written notice to the Contractor at the Contractor's place of business by midnight of the third business day after you received a signed and dated copy of the contract that includes this notice. Include your name, your address, and the date you received the signed copy of the contract and this notice.

If you cancel, the Contractor must return to you anything you paid within 10 days of receiving the notice of cancellation. For your part, you must make available to the Contractor at your residence, in substantially as good condition as you received them, goods delivered to you under this contract or sale. Or, you may, if you wish, comply with the Contractor's instructions on how to return the goods at the Contractor's expense and risk. If you do make the goods available to the Contractor and the Contractor does not pick them up within 20 days of the date of your notice of cancellation, you may keep them without any further obligation. If you fail to make the goods available to the Contractor, or if you agree to return the goods to the contractor and fail to do so, then you remain liable for performance of all obligations under the contract.

Acknowledgement of receipt of Right to Cancel Notice:

(OWNER'S Signature)

Date

THIS AGREEMENT IS ENTERED INTO AS OF THE DAY AND YEAR STATED ABOVE. THIS AGREEMENT EXPRESSLY INCORPORATES ALL TERMS AND CONDITIONS SET FORTH HEREIN, AND ANY ATTACHMENTS OR EXHIBITS ATTACHED HERETO. THIS AGREEMENT IS EXECUTED IN AT LEAST TWO ORIGINAL COPIES, OF WHICH ONE IS TO BE DELIVERED TO THE CONTRACTOR AND ONE TO THE OWNER.

OWNER (SIGNATURE)

CONTRACTOR (SIGNATURE)

OWNER (PRINT NAME AND TITLE)

CONTRACTOR (PRINT NAME AND TITLE)

¹ Five day cancellation notice is only available to an Owner (or buyer) who is a senior citizen.

² Seven day cancellation notice is only used for contracts for the repair or restoration of a residential premises damaged by a disaster upon which a state of emergency has been declared.

NOTICE OF CANCELLATION

(to be provided in duplicate)

The "Notice of Cancellation" may be sent to the Contractor at the address or email address below. For help locating or completing this form, contact the Contractor at the phone number below.

Cabrera Construction | 2752 Capistrano St, Antioch, CA 94509 | (415) 359-5394 | admin@cabrera.construction

(Date of Transaction)

You may cancel this transaction, without any penalty or obligation, within three (3), five (5) or seven (7) business days from the above date.

If you cancel, any property traded in, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within 10 days following receipt by the Seller/Contractor (the term "Seller" shall be deemed to refer to Contractor) of your cancellation notice, and any security interest arising out of the transaction will be canceled.

If you cancel, you must make available to the Seller at your residence, in substantially as good condition as when received, any goods delivered to you under this contract or sale, or you may, if you wish, comply with the instructions of the Seller regarding the return shipment of the goods at the Seller's expense and risk.

If you do make the goods available to the Seller and the Seller does not pick them up within twenty (20) days of the date of your notice of cancellation, you may retain or dispose of the goods without any further obligation.

If you fail to make the goods available to the Seller, or if you agree to return the goods to the Seller and fail to do so, then you remain liable for performance of all obligations under the contract.

To cancel this transaction, mail, email, or deliver a signed and dated copy of this cancellation notice, or any other written notice, or send a telegram to the Seller/Contractor at the address or email address listed on the attached Contract not later than midnight of _____ (enter applicable date).

I, Owner, hereby cancel this transaction:

(Date)

(Owner's Signature)



CABRERA CONSTRUCTION

Lic. #1135927 | B-General Building
2752 Capistrano St, Antioch, CA 94509
(415) 359-5394 | admin@cabrera.construction

HOME IMPROVEMENT CHANGE ORDER

(Business and Professions Code §7159) Attachment to the Home Improvement Contract

(Owner's Name)	Change Order No.
(Project Name and Address)	Date of Change Order
(Date of Original Home Improvement Contract)	Contractor

This Change Order modifies the Home Improvement Contract identified above between the Owner and Cabrera Construction. Extra work and change orders become part of the contract once the order is prepared in writing and signed by both parties **before** any work covered by the change order begins. The Owner may not be required to perform extra work without written authorization prior to the commencement of work covered by this order. To be enforceable, this order must identify, in writing, all of the following: (i) the scope of the work; (ii) the amount to be added to or subtracted from the contract; and (iii) the effect the order will have on the schedule of progress payments and the completion date.

1. Scope of the Extra Work or Change

2. Effect on the Contract Price

Original Contract Price:	\$	
Amount ADDED by this Change Order:	\$	
Amount SUBTRACTED by this Change Order:	\$	
NEW Contract Price (after this Change Order):	\$	

3. Effect on the Schedule of Progress Payments

4. Effect on the Completion Date

Prior Approximate Completion Date	New Approximate Completion Date

Use of Subcontractors (required disclosure – check one):

Will one or more subcontractors be used for this change? Yes No

If "Yes" is checked, the following disclosure applies and is part of this change order: One or more subcontractors will be used on this project, and the contractor is aware that a list of subcontractors is required to be provided, upon request, along with the names, contact information, license number, and classification of those subcontractors.

By signing below, the Owner and Contractor agree to the change described above. This Change Order is not effective and the changed work shall not begin until this order is signed and dated by both parties.

OWNER (SIGNATURE)	CONTRACTOR (SIGNATURE)
Date	Date

This form implements the change-order requirements of Business and Professions Code §7159. It is a compliance aid, not legal advice; the Contractor is responsible for reviewing §7159 in full.



CABRERA CONSTRUCTION

Lic. #1135927 | B-General Building
2752 Capistrano St, Antioch, CA 94509
(415) 359-5394 | admin@cabrera.construction

CALIFORNIA RESIDENTIAL CONTRACTS

Required Attachments and Compliance Checklist · Home Improvement (B&P Code §7159)

Owner	Contract Date
Project Address	Prepared / Reviewed By

Use this checklist to confirm the Home Improvement Contract contains every element required by California law and that all required documents are attached before the contract is signed and before work begins. Items marked **(2026)** reflect changes effective January 1, 2026 (SB 517 / AB 1327).

A. Required Contract Contents (B&P §7159)

Contract is in writing, signed and dated by both the Owner and the Contractor, with a completely filled-in copy given to the Owner **before any work begins**.

Printed in at least 10-point type, with headings in at least 10-point bold; statutorily specified notices in 12-point bold or larger.

Contractor's name, business address, and CSLB license number; home improvement salesperson's name and registration number, if applicable.

Section titled "Contract Price" stating the total price, including labor, materials, and applicable fees.

Description of the project and of the significant materials to be used and equipment to be installed.

Down payment does not exceed the lesser of \$1,000 or 10% of the contract price, with the required down-payment notice.

Schedule of progress payments describing each phase of work and the amount of each payment, with the required 12-point notice; no payment collected for work not yet completed or materials not yet delivered.

Approximate start date and approximate completion date.

"Note About Extra Work and Change Orders" included.

Mechanics Lien Warning included.

"Information about the Contractors' State License Board (CSLB)" included.

Three-day Notice of Cancellation language in the contract, and the separate Notice of Cancellation form provided in duplicate (five-day for senior citizens; seven-day for disaster repair, as applicable).

Commercial General Liability (CGL) insurance disclosure (check one option).

Workers' Compensation insurance disclosure (check one option).

If an Arbitration of Disputes provision is included, it carries the required statutory notice and separate Owner and Contractor initial lines.

B. New for 2026 (SB 517 / AB 1327)

(2026) Subcontractor disclosure checkbox present: "Will one or more subcontractors be used on this project? [] Yes [] No."

(2026) If "Yes," the required subcontractor disclaimer is stated in the contract **and on every change order** (list of subcontractors with names, contact info, license number, and classification available on request).

(2026) Statement that the prime (direct) contractor is responsible for completion in accordance with the contract, plans, and specifications.

(2026) Contract states the contractor's name, address, **and email address**, plus a phone number to help the buyer locate and complete the cancellation form.

(2026) Notice of Cancellation allows the buyer to cancel by **email**, in addition to mail and fax.

C. Documents Attached and Incorporated

Notice of Cancellation form (provided in duplicate).

Home Improvement Change Order form.

This "Required Attachments and Checklist" document.

Plans, drawings, and specifications, if any.

Lien release / waiver forms to be used at each progress payment (Civil Code §§8400, 8404).

Other:

Reviewed By (Signature)	Date

This checklist is a compliance aid based on California Business and Professions Code §7159 and related law; it is not legal advice and does not list every one of the statute's requirements. §7159 contains numerous detailed requirements and is updated periodically. The Contractor is responsible for reviewing the current statute in full and should have contract forms reviewed by a California construction attorney.